

this network and community are available and there are new users getting their first taste of P2P every single day. However, there is a concern regarding the existence of these software and community. How long will these networks survive given the legal system (read American hegemony) and big American corporations worldwide who are trying to put an end to P2P once and for all.

The “Digital Millennium Copyright Act Of 1998”

The Digital Millennium Copyright Act (DMCA) was enacted in 1998 and is an extension of the World Intellectual Property Organization (WIPO) conference.

Simply put, this act lets US companies protect their works from being abused in any manner using legal action. There are certain clauses in the law that let companies take individuals or organisations to court, who they think are infringing on the copyrights of their artists or their work.

The main benefactors of this act are the Recording Industry Association of America (RIAA) and Motion Picture Association of America (MPAA) who have their legal eagles keep an eye on the P2P community. There have been a number of instances where the DMCA Act has led to the closure of a number of P2P Web sites and individuals and groups have been sued and sentenced by the court, thanks to the DMCA act.

However, some countries, especially the Nordic and Asian ones do not have a legal framework in place that will prevent the distribution of software or applications or music using the network. These countries are the ones responsible for keeping the P2P community alive. But with growing US pressure, the future seems uncertain.

Is this warranted, though? To an extent, yes. If you are someone who burns the midnight oil to get a fantastic music album out on the streets only to find it being pirated and sold online or downloaded for free by people, our guess is you will go the legal way. But that does not mean P2P is illegal.